

MASTER SERVICE AGREEMENT

MSA-2022-LWD-636 | Confidential & Legally Binding

Document Type: Master Service Agreement	Document ID: MSA-2022-LWD-636
Effective Date: March 14, 2023	Version: 1.0
Party A: VertexNexus Systems Ltd.	Party B: PulseApex Technologies Pvt. Ltd.

RECITALS

This Master Service Agreement ("MSA-2022-LWD-636") is entered into as of March 14, 2023, by and between VertexNexus Systems Ltd., a company with its principal place of business at 997 Enterprise Way, Austin, TX 78701, USA (hereinafter "Service Provider"), and PulseApex Technologies Pvt. Ltd., with its registered office at 326 Commerce Square, Bangalore 560001, India (hereinafter "Client"). The parties wish to establish the terms under which Service Provider shall deliver technology and professional services to Client.

SECTION 1: DEFINITIONS

- 1.1 Agreement:** means this Master Service Agreement MSA-2022-LWD-636 and all schedules, SOWs, SLAs, and DPAs issued hereunder.
- 1.2 Services:** means all technology, consulting, implementation, and support services provided by Service Provider under applicable Statements of Work.
- 1.3 Deliverable:** means any software, code, documentation, report, or work product created by Service Provider under this Agreement.
- 1.4 Force Majeure:** means any event beyond the reasonable control of a party, including acts of God, war, pandemic, or government action.
- 1.5 Affiliate:** means any entity that directly or indirectly controls, is controlled by, or is under common control with a party.

SECTION 2: TERM AND TERMINATION

- 2.1 Initial Term.** This Agreement commences on March 14, 2023 and continues for 3 year(s), unless earlier terminated.
- 2.2 Renewal. [OBLIGATION]** This Agreement auto-renews for successive one-year terms unless either party provides 60 days written notice of non-renewal prior to the end of the then-current term. **Renewal notice deadline: January 12, 2026.**
- 2.3 Termination for Cause.** Either party may terminate immediately upon 23-day written notice if the other party materially breaches this Agreement and fails to cure within the notice period.
- 2.4 Termination for Convenience.** Client may terminate with 86 days written notice, subject to payment of all fees for services rendered.

SECTION 3: PAYMENT TERMS

- 3.1 Invoicing.** Service Provider shall submit monthly invoices with itemised service descriptions.
- 3.2 Payment Deadline. [OBLIGATION — CONFLICT POINT C3]** Client shall pay all undisputed invoices within **60 days (Net-60)** of invoice date. Late payments accrue interest at 1.7% per month.
- 3.3 Disputed Invoices.** Client must notify disputes within 11 days of receipt, else the invoice is deemed accepted.

SECTION 4: SERVICE LEVELS

- 4.1 **Uptime.** [OBLIGATION — CONFLICT POINT C2] Service Provider commits to minimum system availability of **99.3%** per calendar month, excluding scheduled maintenance of up to 6 hours/month.
- 4.2 **SLA Credits.** Failure to meet uptime entitles Client to service credits not exceeding **10%** [CONFLICT POINT C5] of the monthly service fee.
- 4.3 **Incident Response.** Critical (P1) incidents must be acknowledged within 60 minutes and resolved within 6 hours.

SECTION 5: LIABILITY

- 5.1 **Liability Cap.** [OBLIGATION — CONFLICT POINT C1] Each party's aggregate liability shall not exceed **USD 300,000** or total fees paid in the preceding 12 months, whichever is lesser.
- 5.2 **Exclusions.** Neither party shall be liable for indirect, incidental, punitive, or consequential damages.

SECTION 6: CONFIDENTIALITY

- 6.1 [OBLIGATION] Each party shall hold the other's Confidential Information in strict confidence. Obligations survive termination for 6 years.

SECTION 7: DATA PROTECTION

- 7.1 **Compliance.** Both parties shall comply with GDPR, UK GDPR, CCPA, and all applicable data protection laws in jurisdictions where services are delivered.
- 7.2 **Breach Notification.** [OBLIGATION — DEADLINE] Service Provider shall notify Client within **72 hours** of becoming aware of a personal data breach.

SECTION 8: GOVERNING LAW

- 8.1 [CONFLICT POINT C6] This Agreement shall be governed by the laws of the **State of Texas, USA**. Disputes shall first go to 30-day negotiation, then binding arbitration.

SECTION 9: INTELLECTUAL PROPERTY

- 9.1 Deliverables created under this Agreement shall be works-for-hire with ownership vesting in Client upon full payment. Service Provider retains pre-existing IP rights.

SIGNATURE PAGE

FOR VertexNexus Systems Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

FOR PulseApex Technologies Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

